

20. 1:30 PM CASE NUMBER: MSC21-01540

CASE NAME: BOWLES & Verna vs PHAM, et al.

ISSUE CONFERENCE /READINESS CONFERENCE

FILED BY: BOWLES & Verna, LLP

TENTATIVE RULING:

Parties to appear for Issue Conference.

Law & Motion

Add On

21. 9:00 AM CASE NUMBER: C26-00155

CASE NAME: JANE DOE VS. DANTE WESTBROOK

***HEARING ON MOTION IN RE: QUASH SERVICE / CONT'D PER TR OF 7/10/26**

FILED BY: WESTBROOK, DANTE

TENTATIVE RULING:

Before the Court is Defendants Dante Westbrook, Deborah Westbrook, and Dyna Electric, Inc.'s Motion to Quash Service.

For the following reasons, Defendant's Motion to Quash is **granted**.

Factual and Procedural Background

Plaintiff filed her Complaint on January 14, 2026, alleging sixteen causes of action. The Defendants are identified as Dante Westbrook, Deborah Westbrook, Hakim Abdullah, Dyna Electric, Inc., and Dyna Maids Inc.

On February 13, 2026, Plaintiff filed three separate Proofs of Service ("Proofs"), noting that the following parties were served: (1) Dante Westbrook, (2) Deborah Westbrook, and (3) Dyna Maids, Inc. Each of the three Proofs indicate that the Defendant at issue was served via personal service on January 17, 2026, at 7:09 p.m. The Proofs for Dante and Deborah provide descriptions of the person's served. The Proof for Dyna Maid indicates that the person served with the papers was Dante Westbrook, the owner/agent for Dyna Maid. All three Proofs indicate the address where service took place was: 4790 Snowy Egret Way in Oakley, California. Service was performed by

Jasmane Hayes, who is not a registered California process server.

Thereafter, on February 24, 2026, Plaintiff sought Entry of Default against the three Defendants. Default was entered against each Defendant that same date.

Defendants filed the instant Motion to Quash on March 16, 2026. On April 16, 2026, the Defendants filed a motion to set aside the defaults entered against them.

Legal Standard

California Code Civ. Proc., § 418.10 provides in relevant part that “A defendant . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a).) Regardless of whether there are other grounds for personal jurisdiction, due process requires that an adjudication be preceded by proper notice. (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 313.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.)

When a defendant brings a motion to quash service of summons due to defective service, the burden shifts to the plaintiff to prove facts that give the court jurisdiction. (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) Code Civ. Proc., § 418.10(d) further states that “no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section . . . shall be deemed a general appearance by the defendant.” (Code Civ. Proc., § 418.10(d).)

Statutory Requirements of Service

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152 quoting *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “‘Process’ is ‘a writ or summons issued in the course of judicial proceedings.’” (*Ibid.* citations omitted.) “Unless otherwise provided by statute, notice of a claim against a defendant in a civil action is given by service of a summons on the person.” (*Ibid.*) A court “in which an action is pending has jurisdiction over a party from the time summons is served on him....” (Cal. Code Civ. Proc. § 410.50 (a).) “Thus, in the ordinary civil action, unless there be other statutory authority, the issuance and service of summons is a prerequisite to acquisition of jurisdiction.” (*Pousson v. Superior Court of San Diego County* (1958) 165 Cal.App.2d 750, 752.)

The Civil Code prescribes four basis manners of service: (1) personal service, (2) 'substitute service' – wherein the papers are left with someone else coupled with mailing, (3) service by mail coupled with an acknowledgement of receipt, and (4) service by publication. (See Cal. Civ. Code § 415.10 et seq.) Here, the Proofs at issue indicate that service was made via personal service.

Dante and Deborah Westbrook

"A summons may be served by personal delivery of a copy of the summons and the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery." (Code Civ. Proc. § 415.10.) As outlined above, the Proofs indicate that Dante and Deborah were personally served at 7:09 p.m. on January 17, 2026, at 4790 Snowy Egret Way in Oakley, California.

Dante and Deborah both submit declarations indicating that they were never personally served with the papers regarding this matter. They both declare that while they own the Snowy Egret property, it is not either of their home address and they do not reside there.

Deborah Westbrook makes clear that she was not present at the Snowy Egret property "on January 17, 2026 at anytime." She avers that the "filed proof of service is false." Dante Westbrook states that he "was not present at the [Snowy Egret] property where service was claimed to have occurred." He declares: "No summons or complaint was personally served on me at that location or at any other location." Dante Westbrook notes that the Snowy Egret property is a rental property that is used "as a mailing address for [his] company Dyna Electric."

In addition to the above, Defendants submit the declaration of Brittiany Shields, who indicates that she is the tenant at the Snowy Egret property. She further states that on the date in question, January 17, 2026, she was "home all day and night," and that "Dante and Deborah Westbrook nor anyone other than my children and friend was present [there] at any time that day or night." She also indicates that no person "ever attempted to serve any legal documents or any form or paperwork to my residence."

All the above adequately undermines the statements made in the Proofs claiming that Dante and Deborah Westbrook were personally served on January 17 at the Snowy Egret property.

Plaintiff does not present any evidence to dispute the above. Instead, she appears to argue that a California Secretary of State document shows that the Snowy Egret

property is a registered address for the Dyna Maid, Inc. corporation as well as the officers, Dante and Deborah Westbrook. There are a few problems with this argument.

First, there is no admissible evidence supporting her position. Plaintiff does not request judicial notice of the Secretary of State document, nor does she provide a declaration authenticating it. Instead, she merely makes these arguments in her memorandum of points and authorities.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “Even if they were, the statements contained in the memorandum lack foundation and could not have been used by the court to evaluate the consideration.” (*Brehm Cmtys. v. Superior Court* (2001) 88 Cal.App.4th 730, 735.)

This observation applies to all other factual arguments made by Plaintiff – for example her statements regarding the Westbrook’s use of the Snowy Egret property.

Second, even if the Court were to review the Secretary of State document, it does nothing to show that either Westbrook was at that location on the date in question.

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413)

Plaintiff has failed to meet this burden. “Until statutory requirements [for service of summons] are satisfied, the court lacks jurisdiction over a defendant.” (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808-09 multiple citations omitted.)

Dyna Maids, Inc.

The Proof of Service for Dyna Maids, Inc. indicates that the summons and complaint were purportedly served on Dante Westbrook as outlined above. As discussed in the prior section, Mr. Westbrook has presented evidence showing that he was not served with any papers as alleged in the Proof of Service. Again, Plaintiff has failed to provide any evidence or arguments refuting Mr. Westbrook’s evidence.

As such, Plaintiff has failed to meet her burden to show that service properly occurred.

Plaintiff's Procedural Arguments

As outlined above, Plaintiff does not substantively address any of Defendants arguments or evidence showing that they were not personally served on the date and at the location stated in the Proofs. Instead, Plaintiff makes several procedural arguments.

Initially, the Court notes that Plaintiff provides no legal citations or authority for any of the arguments. The only legal authority cited in Plaintiff's Opposition is Code of Civil Procedure § 418.10. She provides no case authority to support any of her arguments.

Every memorandum of points and authorities "**must contain** a statement of facts, **a concise statement of the law**, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. R. Ct. 3.1113 (b) emphasis added.) Rule 3.1113 prevents the "trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

If Plaintiff intends to argue or rely on any authority other than the text of the statute at issue, she should cite such authority in her papers. Plaintiff is cautioned to provide proper legal support for any arguments in the future.

Timeliness

Plaintiff argues that the motion to quash is untimely as it needed to be filed 'at least on the last day to respond.' (Opp. at 4:12.) Code of Civil Procedure § 418.10(a) provides in pertinent part that a defendant may file and serve a motion to quash "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow...."

First, a defendant is only required to respond to a complaint only **after** they have been properly served. "A party cannot be properly joined unless served with the summons and complaint ... Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) Given that the Court finds that Defendants have presented sufficient evidence to demonstrate that they were never served with the summons and complaint, the clock did not begin to run on January 17 as Plaintiff claims. As such, the motion is timely.

Second, even if the Court were to find that the clock started to run on January 17, a motion to quash is timely if filed and served within the time to respond (i.e. 30-days) “or within any further time that the court may for good cause allow....” (Code Civ. Proc. § 418.10 (a).) The Court finds that there is good cause for Defendant’s filing of their motion to quash on March 16, 2026. Defendants have adequately shown that they were not given proper notice at that time. Nor is there any evidence indicating when Defendants became aware of the lawsuit.

Accordingly, the Court finds that Defendant’s Motion to Quash is timely.

Service of Motion to Quash

Plaintiff argues that the Motion was not “personally served” upon her “as required by code,” but was instead served via mail. She indicates there was no electronic service either.

Per Code, the notice of motion “shall be served in the same manner, and at the same times, prescribed by subdivision (b) of Section 1005.” Subdivision (b) of section 1005 does not require personal service of motion papers. In fact, it explicitly allows for service by mail, noting that “if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California....”

As for the reference to electronic service, electronic service of documents on unrepresented parties only applies when that party consents to receiving documents electronically. (Code Civ. Proc. § 1010.6(c).) The California Rules of Court specifically state that in cases with represented and unrepresented parties “each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise.” (Cal. R. Ct. 2.253 (b)(3).) Plaintiff has not demonstrated that she has consented to electronic service at this time, so electronic service would not have been proper anyway.

Motion is Moot Due to Filing of Motions to Set Aside

“In 2002, the Legislature added subdivision (e) to section 418.10, the statute that currently governs motions to quash.” (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 211.) “Under subdivision (e), a defendant or cross-defendant may move to quash and ‘simultaneously answer, demur, or move to strike the complaint or cross-complaint.’” (*Ibid.*) “Moreover, ‘**no act**’ by a party who first makes a motion to quash,

‘including filing an answer, demurrer, or motion to strike,’ constitutes an appearance ‘unless the court denies the motion.’” (*Ibid.* emphasis added.) “If the trial court denies the motion, the defendant is ‘not deemed to have generally appeared until entry of the order denying the motion.’” (*Ibid.*)

Courts have interpreted the “no act” language above “broadly.” (*Id.* at 214.) “Subdivision (e) prevents the inadvertent waiver of objections to jurisdiction by delaying recognition of the party’s general participation in the litigation until after the jurisdictional issue is finally resolved.” (*State Farm General Ins. Co. v. JT’s Frames, Inc.* (2010) 181 Cal.App.4th 429, 441.) “A party may answer, demur, move to strike **and perform other actions related to the merits** without fear of accidentally waiving a potentially meritorious attack on personal jurisdiction.” (*Ibid.*)

“Subdivision (e)(1) of section 418.10 protects a defendant who moves to quash by providing that “no act” by that party shall constitute a general appearance. (*Roy v. Superior Court* (2005) 127 Cal.App.4th 337, 345.) “Nothing could be clearer: a defendant may move to quash coupled with *any* other action without being deemed to have submitted to the court’s jurisdiction.” (*Ibid.*)

Here, Defendants filed their motion to quash on March 16, 2026. Thereafter, on April 16, 2026, they filed their motion to set aside default. That act, while normally constituting a general appearance if filed on its own, does not constitute a general appearance because Defendants motion to quash was still pending. As such, the Defendants did not waive their jurisdictional arguments by filing their motion to set aside.

Plaintiff’s Request for Sanctions

Plaintiff requests sanctions in the amount of \$1,250 because she “had to file this Opposition....” Plaintiff does not cite any legal authority for her request for sanctions. Nor does she provide any support or explanation as to where she came up with the figure.

In addition, as outlined above, Plaintiff’s opposition fails to refute Defendant’s motion. As such, there is no basis for awarding sanctions for a non-meritorious opposition. Her request is denied.

Plaintiff also indicates that defense counsel improperly identified her by putting her name next to the Jane Doe nomenclature used in this case. That issue is not related to

the motion to quash and therefore irrelevant to the issues currently before the Court. Plaintiff's request for sanctions is denied.

Summary and Conclusion

Defendants present sufficient evidence to refute the claims in the Proofs of Service that they were personally served with the summons and complaint in this action. Plaintiff fails to present any evidence to support her position. In addition, all of Plaintiff's procedural arguments regarding the motion to quash are without merit.

As such, Defendants' Motion to Quash is **granted**.

"California courts have held that 'compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. ... Thus, a default judgment [or default] entered against a defendant who was not served with a summons in the manner prescribed by statute is void.'" (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 214.) "The court may, upon ... its own motion, ... set aside any void judgment or order." (Code Civ. Proc. § 473(d).) Under section 473, subdivision (d), the Court may set aside a default "which is valid on its face, but void, as a matter of law, due to improper service." (*First American Title Ins. Co. v. Banerjee* (2022) 87 Cal.App.5th 37, 42.)

Given the above ruling of the Court finding service of process was not accomplished, the Defaults entered against the Defendants on February 24, 2026, are void as a matter of law. Accordingly, the Defaults against the Defendants are also set aside as of the date of this Order. The August 14, 2026, hearing on Defendants' motion to set aside is vacated.

22. 9:00 AM CASE NUMBER: C24-02795
CASE NAME: XAVIER ALVAREZ VS. JAMES GUDE, M.D
*HEARING ON MINOR'S COMPROMISE RE: XAVIER ALVAREZ
FILED BY: XAVIER ALVAREZ
TENTATIVE RULING:

Petitioner Gezal Rivera (as parent and Guardian ad Litem)'s Petition for Approval of Compromise of Xavier Alvarez's Claim ("Petition"), filed on June 26, 2026, is granted.